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File No: EXP202206688

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 29, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against FUNDACIÓN VEDRUNA EDUCACIÓN COLEGIO ***COLEGIO.1 (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202206688

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 06/09/2022. The complaint is directed against FUNDACIÓN VEDRUNA EDUCACIÓN-COLEGIO ***COLEGIO.1, C/ ***DIRECCIÓN.1, with NIF G87804688 (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

It states:

- That on 05/12/2022, I sent an email to the XXXXXX of my daughter who is XX years old and is enrolled in XXXXXXXXXXXX (CM), in which, in addition to requesting a tutorial to know the progress of the course, I requested information on all kinds of contingencies related to the subject of XXXXXX, letting the XXXXXX know that my daughter felt abandoned, neglected, mistreated, despised, insulted at times, and disparagingly compared to third parties or to the other class..."

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- That on 05/13/2022, "during the class hour of the XXXXXX, CM, the teacher of XXXXXX made public the content of the email that I sent to XXXXXX."

"My daughter was unaware of the content of the email."

"I informed the Director of the Center about the situation and requested the initiation of an informational file to protect the rights of the minor, as professional secrecy and confidentiality had been breached."

The complainant provides in document 1, an email from the complainant to the Director of the school, Friday 05/13/2022, which contains another in which the complainant indicates that his daughter "has just come home from school crying, she has locked herself in her room and does not want to come out because she says that they are going to expel her from school, that the XXXXXX are going to have to leave the school, that thankfully XXXXXX no longer has friends, that the teacher has read in class the email that I sent yesterday to the XXXXXX - I hope this is not true -, "what my daughter received today is completely inappropriate, and it happened in front of another adult."

- On Monday 05/16/2022, they had a meeting with the XXXXXX (CM) and the pedagogical director. The school acknowledged the malpractice and apologized. In this regard, the complainant provides a copy of the minutes of the meeting of 05/16/2022 in document 2. It highlights from the same that in the tutorial "there are two topics to address, the first is the follow-up of the student during the course and the next,"

In the minutes, the parents state that the right to privacy of the student is being violated by publicly accusing her in front of the entire class, being a form of mistreatment. Furthermore, their daughter has informed them that some classmates are ignoring her and do not want to associate with her and "that the teacher B.B.B. has called several classmates to ask for explanations about her." The pedagogical

director apologizes for the actions taken and also acknowledges the inappropriate action of the teacher. "He commits to speak with the teacher about the issue raised by the parents."

"The XXXXXX apologizes as she acknowledges that she made a serious mistake by allowing a private email between the father of the student and her to be exposed in her class by another classmate."

The complainant provides in document 3, a transcription of parts of the meeting of 05/16, where according to the complainant, there is a record of what happened in the classroom on 05/13. The parents indicate that this email was a private email and the intervenor 1, who can be inferred to be the XXXXXX, states that it was leaked in her tutorial at 11:30 a.m. The pedagogical director as intervenor 2 in this transcription states, "the teacher did it wrong and you did it wrong," while intervenor 1 indicates "I acknowledge my fault." Intervenor 2 adds: "and this has been communicated to you by the management."

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- It continues stating that on Thursday, 19/05/2022, "my daughter says that the teacher of XXXXXX spoke again about the matter. Specifically, my daughter says that the aforementioned teacher, referring to her, said aloud in class that apparently she had hurt the feelings of some classmate and that apparently one could no longer tell the truth." The claimant considers that the information from the meeting held on 16/05 with the XXXXXX was leaked and "the teacher of XXXXXX communicated it to again point out my daughter in a way that once again breaches professional secrecy."

- On 24/05/2022, the claimant contacted the DPD of the educational center, stating according to the copy of the document that he provides an explanation of the facts and that he considers there is a violation of professional secrecy, disclosing information that compromises my minor daughter. "I request that you inform me about the aforementioned file and compliance with the GDPR and any issues you consider relevant to assess the current situation." He provides in document 10 a copy of his request and the response from the same month, dated 27, indicating that the DPD ensures that teachers comply with current regulations, carrying out various actions in data protection to ensure compliance with the regulations in each case.

- On Monday, ***DATE.1, at the request of the pedagogical director, a meeting was held again with the presence of the teacher of XXXXXX. During this meeting, the teacher "accused us of acting wrongly, that we had to apologize, that we did not know how to educate our children, and presented herself as a victim of the situation..." They consider that this meeting is a violation of the protocol for violence, harassment, or mistreatment and violates the norm, the order of 20/06/2011 which adopts measures for the promotion of coexistence in educational centers funded with public funds and regulates the right of families to participate in the educational process of their children, published in the Official Bulletin of the Junta de Andalucía 132, of 07/07/2011. "By exposing the legal guardians and the minor to the person whom we believed was involved in an investigation for suspected mistreatment, which has already throughout the process demonstrated behaviors compatible with humiliating and belittling a minor after breaching the duty of confidentiality, an investigation that, on the other hand, does not seem to have been initiated to date. The teacher should never have known the names of the parents or the affected minor; her privacy and confidentiality should always have been protected. This meeting should never have taken place; it is in itself a breach of professional secrecy."

He estimates that professional secrecy has been violated, causing damage to his daughter's dignity by disclosing information protected by the confidentiality inherent to educational practice.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of 5/12, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), on 13/06/2022, this complaint was forwarded to the party complained against, to proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

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In the transfer, the following was requested:

1. The decision adopted regarding this complaint.
2. In the event of exercising the rights regulated in Articles 15 to 22 of the GDPR, proof of the response provided to the claimant.
3. Report on the causes that motivated the incident that originated the complaint.
4. Report on the measures adopted to prevent similar incidents from occurring, implementation dates, and controls carried out to verify their effectiveness.
5. Any other information deemed relevant.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 13/06/2022, as stated in the certificate in the file.

On 11/07/2022, a response letter was received by this Agency indicating:

1- "It is considered that in no case is there a breach of the duty of professional secrecy, as indicated by the party complained against, since the text of the email was not revealed to the students but simply the fact that it had been received."

2- A sanctioning file has been opened against the teacher under the terms and conditions established in the Regulatory Agreement.

3- The DPD proposed to resend the document outlining the duty of confidentiality and secrecy to which employees are subject; work is currently being done to reinforce these aspects.

4- The complained party "has carried out various technical and organizational measures to ensure compliance with all principles," citing:

a) In May 2019, employees were asked to sign a data protection document, which includes the aspects provided for in Article 13 of the GDPR, the duty to maintain confidentiality, as well as the security measures that must be applied in the use of school information." In March 2022, this document was signed again, with the indicated teacher signing it on 10/03/2022.

They attach in ANNEX 2 the document titled "clause on the Protection of Personal Data additional to the employment contract for all employees of the FVE."

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school ***SCHOOL.1" in which information is provided regarding the processing of the worker's data, the data controller, the purpose, and the legal basis. In point 6, confidentiality and the duty of secrecy on the part of the worker concerning any information to which they have access while performing their duties, as detailed in section 3.

This section 3, titled "confidentiality and duty of secrecy," indicates that all personnel within the framework of the employment or collaboration or service provision relationship with FV- school La Purísima commit to:

"1. not disclose to any person outside of FVE school ***SCHOOL.2 without the consent of the entity any information that they have accessed during the performance of their duties."

2. Use the information referred to in the previous section solely in the manner required for the performance of their duties at FVE- school ***SCHOOL.2 and not to dispose of it in any other way or for any other purpose.

3. Not use in any way any other information that they may have obtained by virtue of their status as an employee or collaborator and that was not necessary for the performance of their duties at FV- school ***SCHOOL.2."

In section 15, it is indicated that the rules and protocols established in this document are part of the worker's labor obligations, and therefore, non-compliance may result in disciplinary action, including

dismissal...”

a) Awareness and training of personnel participating in the data processing operations of the center through talks and training actions. Annex four provides the email of the Data Protection Officer.

b) Copy of the appointment of DPO dated 18/10/2020 addressed to the AEPD.

THIRD: On 15/07/2022, in accordance with Article 65 of the LOPDGDD, the claim submitted by the claimant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

On 7/09/2022, a request for information was made to the respondent party, asking for, among other points:

a) Copies of the minutes of the meetings held as a result of the claim and what the exact information revealed on 13/05/2022 during tutoring hours and on 19/05/2022 during the class of XXXXXX by the teacher of XXXXXX involved in the claim.

The respondent party responded to this request for information on 15/09/2022, providing the following information and statements:

- That on 13/05/2022, the involved teacher attended the tutoring class and “simply stated that she had received certain information about the treatment that her students were experiencing in her classes, lamenting that the students felt neglected. At that moment, the affected student, feeling addressed, responded to the teacher, and both began a conversation about it, at which point the teacher referred to the email sent by her father.”

- “That on 19 May 2022, the involved teacher, during the course of her class, apologized for having entered the classroom during tutoring hours and for having expressed the students' discomfort with her classes.”

The respondent party insists that at no time was the content of the claimant's email revealed to the other students present in the classroom and that “there are other avenues, such as the internal protocols of the center, for this type of situation and the solutions provided by the corresponding departments.”

- A copy of the minutes of the meeting of 16/05/2022 is provided, which has already been submitted by the claimant in document 2.

- A copy of the meeting of ***DATE.1, in which the teacher of XXXXXX was listed as an attendee, with the title “Minutes of tutoring ***DATE.1,” highlights in extract form:

a) Topics to be addressed: the first item states “apology for the poor educational practice of the teacher towards the class of XXXXXXXXXX, specifically towards the girl... for the public reference to an email sent by the claimant on 12 May to the XXXXXX.”

In the second: “Family reactions following the incident mentioned in point 1.”

Agreements reached/conclusions

Regarding point 1, “the teacher admits to the family the poor educational practice and apologizes.

However, the family believes that this action is insufficient and feigned.”

Development of the tutoring

“the teacher apologizes and tells them that her intention was never to hurt anyone. She also states that she has no unfavorable personal dealings with the girl. The teacher asks the family on what basis they are using the disqualifications they sent to the XXXXXX regarding their daughter's feelings towards her work, an email that was sent after the family received a notification via the Educamos platform regarding the low...

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academic performance of her daughter, The family's response is that this message should never have reached the teacher and criticizes the poor conduct of the XXXXXX, for sharing the content of the email.” The teacher indicates that it would have been easier if they had simply requested a tutorial and she would have attended to them instead of sending emails with that content.

“They call the teacher arrogant and say that it is normal for students not to feel comfortable with the

XXXXXX teacher; in response, the teacher feels bad about this accusation. They also define what a good teacher is for them, which does not align with the teacher's practice, stating that a good teacher is one who takes care of students with more difficulties and therefore affirming that the teacher does not do this since her methodology does not focus on students with needs."

- A copy of the minutes of the meeting held between the teacher involved in the complaint, the Data Protection Coordinator of the center, and the Secondary Director is provided, indicating to the teacher that personal information and conversations with the families of the students, as well as those in question, cannot be disclosed to the rest of the educational community without their express consent."

- A copy of the CLAUSE ON THE PROTECTION OF PERSONAL DATA ADDITIONAL TO THE EMPLOYMENT CONTRACT FOR ALL EMPLOYEES OF FVE XXXX, signed on 10/03/2022 by the teacher involved in the complaint is provided.

FOURTH: On 7/09/2022, a request for information is made to the Ministry of Education of the Junta de Andalucía regarding:

- A copy of the file related to the alleged case of bullying that occurred at the La Purísima school, Jaén, concerning the girl (name and surname)

- Any other information deemed relevant for the study of the case

The Ministry responds on 19/09/2022, providing three annexes that include the following documentation:

- Documentation submitted by the complainant to the Educational Inspection dated 09/06 and 6/07/2022, reporting a breach of professional secrecy. Among this is a copy of the email that the complainant sent on 12/05/2022 to the XXXXXX, with the subject: "tutoring," indicating that they request a general tutoring session regarding their daughter's progress, and:

"(...)"

It also provides documentation that has been reflected in the background, and as a novelty includes:

- A letter from the complainant to the AMPA outlining the facts, dated 5/06/2022.

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- In document 5, a copy of the letter that the School sent to the Education Inspection indicating:

"The management of the center became aware that on XXXXXXXX during the development of the XXXXXXXXXX class taught to the group of XXXXXXX between 11:30 and 12:30, their teacher and XXXXXXX CM publicly commented to the XXXXXXX teacher Mrs.... in a loud voice, in front of the group of students, about the electronic communication sent on the previous XXXXXX to the CM group by Mr. C.C.C., father of the student... who was also present in the class. Various critical comments were made aimed at highlighting the mentioned student, addressing the class by asking if she 'insults and mistreats students in class, or compares them disparagingly with the other class, I have abandoned and neglected you...' subsequently addressing XXXXXX directly, asking her 'then why does your father put that about me in the email?'

"These facts were contrasted with the version provided by the students present at that moment in the class by the XXXXXXX herself." From that very moment, efforts were made to resolve the problem by attempting to contrast the testimonies provided by those involved. We have enabled the father to speak with the XXXXXXX, with the teacher in question always in the presence of the pedagogical director."

"This management decided on 3/06 to warn of serious conduct as provided in sections d) and i) of subsection 2 of article 99 of the VII Collective Agreement of companies providing education funded totally or partially by public funds." The facts constitute a lack of respect and mistreatment of a member of the educational community of the center, a student whose physical integrity and personal dignity are protected by various regulations that are enumerated.

- On 1/12/2022, a letter is received in this Agency from the complainant requesting that the document received from the President of the School Council regarding the sanction imposed on the teacher,

"warning for serious misconduct as a result of malpractice towards the student," be incorporated.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary nature, by the general rules on administrative procedures."

II

The GDPR defines personal data in its Article 4.1:

"any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person;"

From the perspective of the format or medium in which the information is contained, the concept of personal data includes information available in any form, alphabetical, numerical, graphic, photographic or sound, for example.

The legislator's intention is to maintain a broad concept of personal data to encompass all information that can be linked to a person, with the aim of protecting the fundamental freedoms and rights of natural persons and, in particular, their right to privacy concerning the processing of personal data.

The GDPR defines the processing of personal data in Article 4.2 of the GDPR:

"any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

From the GDPR, the distinction between the data controller and its employee is derived, for example, when referring to the Data Protection Officer, in its Recital 97: "... Such data protection officers, whether or not they are employees of the data controller," and the functions of this in Article 39 of the GDPR "a) to inform and advise the controller or the processor and the employees who are involved in processing of their obligations under this Regulation and under other Union or Member State data protection provisions;."

This signifies that the positions or employees of the data controller, when carrying out personal data processing in the performance of their functions, are within the circle of the data controller, who must establish guidelines and dissemination of information in such a way that uniform application is achieved in their scope.

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The respondent is the data controller, carried out by the personnel providing services in its

organization, and as such, responds to the definition of data controller in Article 4.7 of the GDPR, which states:

“data controller or controller: the natural or legal person, public authority, service or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States;”

From this perspective, the email that contains a sender, their data, to a recipient, in this case, the father of the minor to the XXXXXX of the educational center, which contains information related to the personal data of the minor, concerned by the educational issues of the center where they study, is identified as personal data.

Article 70 of the LOPDGDD states:

“1. The following are subject to the sanctioning regime established in Regulation (EU) 2016/679 and in this organic law:

a) The controllers of the processing

III

Decree 327/2010, of 13/07, which approves the Organic Regulation of Secondary Education Institutes (BOJA 16/07/2010) establishes as rights of students in its Article 3 b), “the respect for their freedom of conscience and their religious and moral convictions, as well as their identity, privacy, integrity and personal dignity.”

Regarding internal organization, Article 83 states: “Teaching teams.”

“1. The teaching teams shall be composed of all the teachers who teach a same group of students.

They shall be coordinated by the corresponding tutor or

XXXXXX

.

2. The teaching teams shall have the following functions:

a) To carry out the overall monitoring of the students in the group, establishing the necessary measures to improve their learning, in accordance with the educational project of the center.

b) To collectively evaluate the students, in accordance with the current regulations and the educational project of the center and adopt the corresponding decisions regarding promotion and certification.

c) To ensure that each teacher provides the students with information regarding the programming of the subject they teach, with special reference to the objectives, the minimum requirements, and the evaluation criteria.

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d) Establish actions to improve the coexistence climate of the group.

e) Coordinate the handling of conflicts that arise within the group, establishing measures to resolve them and without prejudice to the competencies that correspond to other bodies in matters of prevention and resolution of conflicts.

f) Know and participate in the preparation of the information that, if applicable, is provided to the parents, guardians, or legal representatives of each of the students in the group.

g) Propose and prepare non-significant curricular adaptations, under the coordination of the tutor teacher and with the advice of the guidance department referred to in Article 85.

h) Attend to the parents, guardians, or legal representatives of the students in the group in accordance with what is established in the guidance and tutorial action plan of the institute and in the current regulations.

i) Any others determined in the guidance and tutorial action plan of the institute.

3. The teaching teams will work to prevent learning or coexistence problems that may arise and will share all necessary information to work in a coordinated manner in the fulfillment of their functions.

4. The teaching teams, in the compulsory secondary education stage, will work in a coordinated

manner so that the students acquire the basic competencies and objectives set for the stage.

5. The head of studies will include in the general schedule of the center the planning of the meetings of the teaching teams.”

Article 90.2 states that: “The tutors and XXXXXXs will exercise the direction and guidance of the students' learning and support in their educational process in collaboration with the families. Article 91 “functions of tutoring,” states:

c) Coordinate the educational intervention of the teaching staff that makes up the teaching team of the group of students under their charge.

e) Ensure the coordination of the teaching and learning activities proposed to the students under their charge.

f) Organize and preside over the meetings of the teaching team and the evaluation sessions of their group of students.

g) Coordinate the continuous evaluation process of the students and adopt, together with the teaching team, the decisions that are appropriate regarding the evaluation, promotion, and certification of the students, in accordance with the applicable regulations.

h) Complete the personal and academic documentation of the students under their charge.

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i) Gather the opinion of the students under their charge regarding the teaching and learning process developed in the different subjects, areas, or modules that make up the curriculum.

j) Inform the students about the development of their learning, as well as their parents, guardians, or legal representatives.

k) Facilitate communication and educational cooperation between the teaching staff of the teaching team and the parents or legal representatives of the students. This cooperation will include attention to electronic tutoring through which the parents, guardians, or legal representatives of minor students can exchange information regarding the school progress of their children with the teacher assigned to their tutoring in accordance with what is established for such purposes by Order of the person in charge of the competent department in education.

The teacher of XXXXXXXX is aware of the content of the email that the complainant sends to the defendant through the XXXXXXXX (...), and with the collaboration of this, which communicates the content of the information in the email, including the person who sent it and who referred to his daughter.

The teacher does not maintain the information known within the specific and reserved purpose circle of the educational matter and the teaching team in question, making it known to the entire class through comments and revealing the essence of its content to all students, including the complainant's daughter who that day, 12/05/2022, were in class. Information is provided about a natural person who is fully identified.

Recital 74 of the GDPR states: “The responsibility of the data controller for any processing of personal data carried out by themselves or on their behalf must be established. In particular, the controller must be obliged to apply appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing as well as the risk to the rights and freedoms of natural persons.”

The actions of the teacher, as an employee of the defendant in the performance of her duties, are attributable to the data controller, the defendant, who is estimated to have possibly infringed Article 5.1.f) of the GDPR which states:

“Personal data shall be:

“processed in such a way as to ensure an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or

damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

The LOPDGDD states in its Article 5:

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"1. The data controllers and processors, as well as all individuals involved in any phase of this, shall be subject to the duty of confidentiality referred to in Article 5.1.f) of Regulation (EU) 2016/679."

Due to the affected scope, the provisions of Article 92 of the LOPDGDD are relevant, which states:

"Educational centers and any natural or legal persons who carry out activities involving minors shall guarantee the protection of the best interests of the child and their fundamental rights, especially the right to the protection of personal data, in the publication or dissemination of their personal data through information society services."

IV

Article 83.5 states that "Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For the purposes of the statute of limitations for the infringement, the LOPDGDD states in its Article 72:

1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following violations shall be considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial breach of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

V

Article 58.2 of the GDPR indicates: "Each supervisory authority shall have all of the following corrective powers indicated below:

b) to issue a reprimand to any controller or processor when the processing operations have infringed the provisions of this Regulation;

d) to order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame."

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this section, depending on the circumstances of each particular case;

In this case, the administrative sanction procedure for an administrative fine is invoked, given the minor status of the affected individual, and the best interests of the child must be respected at all times.

The imposition of adjustment measures in processing is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

VI

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and

the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

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i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the responsible party or the processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party could have included the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

For the purpose of determining the amount of the sanction based on the aforementioned circumstances, the following apply in this case:

- Article 83.2.a) “the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm suffered.” In this case, the gravity lies in the breaches of expectation that the email sent for educational purposes between the parties was made known to the teacher in front of all the students during the celebration of the first class, and subsequently expressed and revealed issues related to that content shared with the children and with the claimant's daughter.

- Article 82.2 b) “the intentionality or negligence in the infringement”; which denotes at least a serious lack of diligence on the part of those involved (XXXXXX and the teacher), the XXXXXXXX who communicates the content in an improper setting, in the class, and the teacher who expresses it before the students without hesitation, leading to the affront with the claimant's daughter.

The sum of circumstances allows in this initiation agreement for the sanction to be set at 15,000 euros, without prejudice to what results from the instruction of the procedure.

VII

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the responsible party or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified period...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which could motivate such conduct to open another administrative sanctioning procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the VEDRUNA EDUCATION FOUNDATION - SCHOOL ***SCHOOL.1, for the alleged infringement of Article 5.1.f) of the GDPR, in accordance with Article 83.5 a) of the GDPR, classified for prescription purposes in Article 72.1.b) of the LOPDGDD.

SECOND: TO APPOINT D.D.D. as the instructor and E.E.E. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of 1/10, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the

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documents obtained and generated by the General Subdirectorate of Data Inspection.

FOURTH: THAT for the purposes provided in art. 64.2 b) of the LPCAP, the sanction that may correspond would be 15,000 euros, without prejudice to what results from the instruction.

FIFTH: NOTIFY this agreement to FUNDACIÓN VEDRUNA EDUCACIÓN-COLEGIO ***COLEGIO.1, granting it a hearing period of ten working days to formulate allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document. If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in article 64.2.f) of the LPACAP.

In accordance with the provisions of article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 12,000 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 12,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to apply, the amount of the sanction would be set at

9,000 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative channel against the sanction. In the event that it opts to proceed with the voluntary payment of either of the amounts indicated above, 12,000 euros or 9,000 euros, it must do so by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

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Likewise, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of article 64 of the LOPDGDD.

In compliance with articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to it will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if it does not access them, its rejection will be recorded in the file, considering the procedure completed and continuing with the process. It is informed that it can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid. Finally, it is noted that according to the provisions of article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Director of the Spanish Agency for Data Protection

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SECOND: On July 19, 2023, the respondent has proceeded to pay the sanction in the amount of 9,000 euros, making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the waiver of any action or appeal in the administrative channel against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in articles 47, 48.1, 64.2, and 68.1 of the

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Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), grants competence to initiate and resolve this procedure to the Director of the Spanish Agency for the Protection of Data.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency

for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202206688, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to FUNDACIÓN VEDRUNA EDUCACIÓN COLEGIO

***COLEGIO.1.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of XX July, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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